LODHA

Special Conditions of Contract – Integrated Façade Works

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LODHA

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1. Introduction

This section covers the Special Conditions of Contract (herein referred to as "**SCC**"). Where any portion of the General Conditions of Contract (herein referred to as "**GCC**") is at variance with any provisions of the SCC, then the terms mentioned in the SCC or any other extension hereof, shall be considered to supersede the GCC.

This SCC shall be read in conjunction and not in derogation to the GCC and the Contractor herein agrees to be bound by the terms and conditions in the said GCC. It is agreed that the said GCC forms an integral part of this Tender Document and subsequent Work Order. In case of conflict in the Contract documents, the priority of documents shall be applicable as mentioned in Clause 1.7 of the GCC [Conjunction and Precedence of Contract Documents].

For terms that are capitalized but not defined in these SCC, the meanings for the same may be as reasonably inferred from the usage of the term in the GCC.

2. Description of Works

2.1 Type of Contract

This is a Firm Price Item Rate Re-Measurable Contract with Pre-Defined Aluminium Base Rate (Wherever applicable) as stated in the **Appendix to SCC** and the rate awarded to the Contractor in the Annexed Bill of Quantities (BOQ) shall remain valid till completion of all work under the scope, irrespective of any subsequent increase/decrease in quantities & change in construction schedule or any other conditions throughout the Contract period or extension period thereof. All material except "Free Issue Material by the Employer", shall be supplied by the Contractor.

The unit rates quoted by the Contractor against each item in detailed Bill of Quantities given in the annexure includes for the Scope of Work, the Technical Specifications, Drawings, Schedules annexed as part of the Tender Document as well as all the particular / Special Conditions & General Conditions of Contract specified in the Tender Document and clarifications issued before award.

It is deemed that Contractor has brought any error/discrepancy /missing details to the notice of the Employer at Tendering stage and got clarifications to it and further deviation to Tender Documents and issued clarification are not allowed post Contract award.

2.2 Scope of Works

The Scope of Work comprises of Providing, Fabricating & Installing Facade works including Glazing's, etc. as mentioned in BOQ on Full Material & Labour basis as per Employers approved specifications and as detailed in the Drawings, BOQ, Technical Specifications & conditions stated hereunder:

a. Supply of fabricated Façade works material with due quality check, storage & safe keeping, lead & lift to the required location, etc. complete.
b. Erection of fabricated Material on site as per the approved specification as detailed in the BOQ & conditions stated hereunder. One time protection on installed Façade Works (Ready Fabricated Materials covered with protective wrapping would be transported to site for installation).
c. All the labours, tools, tackles, equipment, scaffolding to complete the installation work will be at Contractors' cost.
d. Removing of all Protection elements, after completion of all construction activities which may the affect external facade.
e. On final completion of the entire works covered by the Contract, the Contractor shall ensure that the site is cleared of all scaffolding, temporary structures, debris, excess material and hand over the site to the employer. Furthermore, the Contractor must remove all splashes, stains, deposits and the like caused by their works to the satisfaction of the construction manager before submission of the final bill.
f. Any other works necessary to complete the works as per the project requirements.

g. The Contractor has to follow the Best Safety Practices during the execution of the works at the Site and their factory. Eg.
    a. All workmen working on the external face of the building shall be required to use slide fall arresters.
    b. The length of the slide fall arrester should be lesser of the following:
        a. Height of the building above ground up to terrace slab – 3 m
        b. 50 m
    a. The slide fall arrester should be anchored onto a permanent surface, not onto the scaffolding or any temporary structure.
h. The Contractor shall be solely responsible for providing and operating all equipment, tools and implements (save and except those that the Employer has specifically agreed to provide as per the terms of this Contract) which are required for the implementation of the Contracted works as per the schedule stated in the Contract and as per the quality standards acceptable to the Employer. In case of any dispute in this matter, the decision of Lodha's Chief Operating Officer (COO) shall be binding on all parties. In the event that the Contractor fails or neglects to provide and/or operate the said equipment(s), tool(s) and implement(s) as required, same shall constitute a default on part of the Contractor and the consequences as laid out in this Contract shall follow.

The Contractor shall also be responsible for following:

a. Cleaning the Entire Works.
b. Removing all protection elements which cannot be easily accessed from the inside of the units, after completion of all construction activities which may affect the external façade.
c. Removal of debris generated by the works of the Contractor & disposing at designated location on site will be in the scope of the Contractor.

The Contractor shall complete these works, on instruction of the CM team, at any time within 12 months after completion of 100% of its works (other than a. and b. hereinabove). This responsibility shall lapse if such instruction is not given within 12 months after completion of 100% of its works (other than a. and b. hereinabove).

2.3 Die Ownership

Dies for All Aluminium extrusions shall be Employer's property and Employer will have full right to use these dies or their design for their use as and when required. Contractor shall submit the designs with shop drawings and assign the ownership of dies to Employer or its designated extruder during / after the Contractor has extruded the sections for their works to be completed under this Contract.

2.4 Protection of Facade

Low Tack Protection tape should be applied on the Façade elements from both inside & outside to last for 4 months. All installed elements should be completed in all respects and handed over to CM team within 1 month of completion of installation. The applied protection should be cleaned post expiry of the duration of protection. Further protection of completed works shall be done by other Sub-Contractor working in and around the vicinity of Facade works. In case if CM team needs additional protection, CM team can assign to Facade vendor at extra cost (as mutually agreed between the Contractor and the Employer's representative) & Payment for the same shall be done separately as an extra item.

2.5 Basic Contract Value

Basic Contract Value means the sum stated in the Contract as payable to the Contractor for the execution and completion of the Works to the satisfaction of the Employer in accordance with the provisions of the Contract subject to such additions thereto or deductions therefrom as may be made under the provisions contained in the Contract, including cost of main materials/sundry/miscellaneous materials labour, supervision, transport, handling charges, all duties levies surcharges, prelims, overheads and profit margins and all incidental cost, including all the additions to or deletions from and alterations / revisions for any particular work, but excluding GST and related taxes.

2.6 Total Contract Value

Total Contract Value shall mean the Basic Contract Value including all the additions to or deletions from and alterations / revisions and including GST and related taxes for any particular Work

2.7 Facilities at Site provided by the Employer

Provision of the facilities listed below shall be entirely at the discretion of the Employer's representative, based on site conditions, and shall not be a binding obligation on the Employer. Unless otherwise stated as a deviation in the **Appendix to SCC**, the Employer will provide the following:

Space for temporary site office, stores, workshops, stack-yard shall be provided free of cost for the Contract duration. The extent will be mutually agreed.

The Contractor shall construct, maintain, and demolish all temporary structures at their own cost, hand over the cleared and levelled land upon completion, and comply with all statutory and municipal requirements. The Contractor will be responsible for security, hygiene, and relocation of temporary structures within the site at no extra cost. Access to the site is granted solely as a license to execute Works and does not create any right, lien, or interest in the land, structures, or materials. The Contractor shall ensure that temporary constructions are not illegally occupied.

- **Water and Electricity:** The Employer shall provide water as well as electricity at particular common point every alternative floor or near work site, free of cost. Further distribution shall be done by Contractor at their own cost till wherever required. The Contractor shall ensure that there shall be no leakage or improper use of the said Water & electricity during the course of transition from the common point to the place of requirement or during usage of the same. The Contractor shall be liable for any pilferage or misuse of the Water & electrical power.

- **Storage Space:** The Employer shall provide a space for Contractor's materials, tools etc. Making the space lockable and secure is in Contractor's responsibility. However, Employer shall not be responsible for any damage or theft. Contractor shall remove or re-shift their materials as and when required or instructed by Employer's representative at no extra costs to us. 2 times relocation of the temporary facilities as and when directed by the Employer's representative shall be in the Contractor's scope including all expenses for the same. Costs for further relocations shall be mutually decided and agreed up on by both the parties.

- **Labour Camp:** Labour Camp (if available) shall be provided on chargeable basis if required as per the availability at site. For Charges of labour camp, kindly refer **Appendix to SCC** as is valid for this Contract and the same shall be deducted from Contractor's R.A. bills. All temporary structures shall be removed immediately after completion of the works.
- **Vertical Transportation**: The employer shall provide Material Lift / Hoist, arrangements to lift the material to the required floor to the Contractor as per project logistics availability. Contractor to allow for time allocation of the material lift/ hoist as per the instruction of the Employer's representative. Refer to **Appendix to SCC** for provisions of Vertical Transportation mentioned as applicable under this Contract. Any pilferage or misuse of the provided facility shall be penalised on the Contractor as per decision of the Employer's representative.

- **Miscellaneous facilities**: Urinal facilities shall be available as per site logistics inside building premises. No debris chute shall be provided to the Contractor and it shall be the Contractor's responsibilities to bring all the debris to designated points and shift as per site logistics plan as instructed by the Employer's representative.

3. Materials

The Contractor shall procure, supply, and handle all materials required to complete the Works, except for the supply of those listed as "Free Issue Materials by the Employer" (if mentioned) in the Appendix to SCC, at its own cost and responsibility. All materials shall conform to the Specifications and must be pre-approved by the Employer's representative based on approved construction Drawings and material delivery schedules – not provisional quantities.

Materials of substandard or defective quality shall be immediately replaced at the Contractor's expense, and any unauthorized Materials may be rejected without compensation. Any delay or failure in delivery may result in the Employer arranging delivery at the Contractor's risk and cost, with an additional 10% (ten percent) recovery. The Employer's representative retains the right to inspect materials and access the Contractor's workshops. Payment shall be made against material delivered subject to approval of Material Inspection report (MIR) capturing make (as per approved Material submittals), quality, test report etc by the Employer's representative.

3.1 Contractor's Scope of Materials

All materials required to complete the stated scope of works as per Work Order apart from as mentioned in "Free Issue Materials by the Employer" shall be in the Contractor's scope, at its own cost and security.

- Materials supplied/ obtained should be of standard and acceptable quality as per the Employer's specifications. Defective materials, if any, shall be replaced immediately by the Contractor at no extra cost. The discretion of the organization in this regard shall be final and binding.
- Materials to be used including their make and type shall be pre-approved by the Employer's representative on site.
- Material of sub-standard/ defective quality brought to the site shall be removed, as per instruction of Employer's representative, failing which, the Contractor will not be entitled to any payment whatsoever on this account. The Contractor undertakes to provide the additional material in place of such rejected material at its own costs and expenses.
- In case of Contractor delaying delivery of certain equipment or material, the Employer reserves the right of getting the material delivered at site at the Contractor's risk. The material cost and an additional 10% of cost shall also be recovered from the Contractor.

Employer's representatives will have right of access to the Contractor's workshops.

3.2 Not Used

3.3 Not Used

3.4 Not Used

3.5 Basic Rate Guaranteed Materials and Variation

Aluminium base rate as mentioned in of **Appendix to SCC**, (NALCO- billet CH-10). Variation of +/- 5% on this Basic rate of Aluminium to be absorbed by Contractor/ Employer. The difference only over & above the variation percentage shall be paid or recovered at actuals.

4. Schedule

The Date of Commencement shall be reckoned from such date as may be jointly determined by the Employer's representative & the Contractor. However, the Contractor shall mobilize within 15 days from the date of Letter of Award. Complete schedule to be signed off with Employer's representative at site. Intermediate milestone to be monitored as per schedule finalized with Employer's representative at site. Contractor to complete all the works as per the schedule finalized with Employer's representative to achieve the intermediate milestones and final completion schedule, failing to which Liquidated damages for delay shall be applicable to the Contractor.

- Time is essence of Contract. Assigned schedule will be the part of Contract. Contractor shall submit micro level details of the various activities included in the bar chart as and when asked by the Employer's

representative. The work methodology adopted should be based on simultaneous and not sequential operations as per instructions of the Employer's representative. For any deviation or change in the schedule of activities Contractor will inform the Employer's representative in advance and take their approval in the matter.

- The Contractor shall submit a fortnightly report co-relating the work schedule and the actual work done at site. The said fortnightly report should be prepared absolutely in consultation and with agreement with the Employer's representative.
- The Contractor is required to execute the works as per approved schedule. However, during the period of execution, in case the necessity arises to change the priority of the construction schedule, as per requirement of the employer, the Contractor is bound to follow the changed priority which shall be communicated to the Contractor during review meeting and the Contractor shall have no claim whatsoever on this account.
- In case the project gets delayed due to unforeseen reasons beyond employer's control, time extension would be granted to Contractor as per provision of GCC. No monetary compensation shall be granted on this account.
- Disruptions in work, if any, not attributable to the Contractor shall be measured and recorded in 'days' only and the Contractor shall be allowed equivalent time extension for such disruptions. In the event of any dispute as regards the number of days of such disruption, the decision of the employer shall be binding.

The Contractor shall also submit the detailed schedule of scope work completion for the agreed time duration as per pre agreed format with the Employer's representative.

4.1 Date of Commencement

The Contractor shall adhere to the conditions mentioned in the **Appendix to SCC**.

4.2 Duration of Contract

The Contractor shall adhere to the conditions as per mentioned in the GCC and also as per timeline mentioned in the **Appendix to SCC**. The Contractor shall meet with all agreed timeline and milestones and any changes in the schedule shall be recorded in writing.

5. Commercial Terms

5.1 Mobilization Advance

Interest free mobilization advance (if agreed) shall be paid by the Employer. The Contractor shall furnish to the Employer unconditional and irrevocable security/s of equivalent value as specified in this Contract and issued by a nationalized or scheduled bank in the format furnished by the Employer.

The mobilization advance (if agreed) shall be paid on Total Contract Value (including GST), as mentioned in the **Appendix to SCC**. This mobilization advance will be recovered from the Contractor's running account bill starting from 3rd RA bill in as such way that complete advance shall get recovered till 80% (eighty percent) of Contract value reached. The Employer shall be entitled to unconditionally invoke this security in case the advance payment has not been fully repaid to the extent of amount of unadjusted advance only. In case of non-compliance against validity renewal, penalty of 1% (one percent) per month of the value of guarantee may be levied for the period of invalidity and will be debited in the next RA bill.

All advance payments will require proforma invoice without which advance will not be processed. Also, Contractor has to submit Performance Security prior to release of the mobilization advance payment, as mentioned in the Appendix to SCC. For any bank guarantee ("BG") that is being submitted as per Contract requirements, the BG shall be issued from a nationalized bank approved by the Employer and the claim period must be 6 (six) months (or beyond) from the BG expiry date as per Contract. For any UDC that is being submitted as per Contract

requirements, the UDC must be of the Contractor's running bank account registered with the Employer, to which the Employer deposits the Contractor's regular bill payments.

5.2 Material Advance

Material Advance of mentioned percentage of the BOQ Value related to a given BOQ Item, provided all materials required for the said BOQ Item are simultaneously delivered to Site as per the agreement with the Employer's representative, on Pro-Rata basis. The said secured material advance against the BOQ value is mentioned in the attached **Appendix to SCC**.

5.3 Performance Security

The Contractor within 15 (fifteen) days from the date of issue of the Work Order ("WO"), shall submit a performance security for due performance of the Contract depending upon the Basic Contract Value as indicated here under the **Appendix to SCC** ("Performance Security").

In case the Contractor submits the Performance Security by way of an Un-dated Cheque ("UDC") (wherever allowable), the same shall be accompanied by the following additional documents.

- An undertaking letter on letter head of the Contractor as per the format enclosed to this Contract.
- Letter from the Contractor's bank (Bank from where the UDC is being submitted) as per the format enclosed to this Contract.

For any UDC that is being submitted as per Contract requirements, the UDC must be of the Contractor's running bank account registered with the Employer, to which the Employer deposits the Contractor's regular bill payments.

The Employer shall be entitled to unconditionally revoke this Security in case of breach of the Conditions of the Contract.

5.4 Monthly Running Account Bills

The Contractor shall submit one Running Account Bill ("RA Bill") per month unless otherwise agreed under this Contract.

Payment against submission of Running Account bills shall be as per mentioned in the **Appendix to SCC**, which shall be subject to satisfactory submission of all required information by the Contractor. All the RA Bills shall have an attached joint measurement sheet; duly certified material reconciliation statement as may be applicable as per the instructions of the Employer's representative. The Contractor may submit monthly invoices for works completed along with the certified joint measurements taken along with the Employer's representative before the end of billing period.

The Contractor's bills must contain previous, present and total quantity as per the Employer's format supported with relevant measurement sheets and other documents.

All payments to the Contactor are subject to Retention Deposit Account as specified in this Contract.

Monthly RA bills (tax invoice) shall be considered if the cumulative value of all bills submitted earlier (including amount towards Retention Deposit Account) is less than 95% of the overall Total Contract Value. If the cumulative bill value crosses 95% of the overall Total Contract Value, only the Final Bill shall be considered.

5.5 Schedule of Payment

Payment shall be made against the Running account bills based on the work completed and certified by the Employer's representative. Bill shall be submitted by the Contractor in the following manner as approved by the Employer's representative. Payments against the bill shall be made as mentioned in the **Appendix to SCC**.

5.6 Taking Over Certificate / Virtual Completion Certificate

Upon completion of the work the Contractor shall submit the undertaking of work completion to the Employer's representative, mentioning that the work has been completed in all respect & executed in accordance with the relevant provisions and norms. Such undertaking shall be deemed to be a request by the Contractor for the Employer's representative to issue a "Taking-Over Certificate" in respect of the Works. The Employer's representative shall, within 21 (twenty-one) days of the date of receipt of such communication, either issue to the Contractor, with a copy to the Employer, a Taking Over Certificate / Virtual Completion Certificate, stating the date on which, in their opinion, the Works were completed in accordance with the Contract or give instructions in writing to the Contractor specifying all the Work which, as per the terms of the Contract, is incomplete.

5.7 Statement of Completion and Final Bill

Not later than 60 (sixty) days after the issue of the Taking-Over Certificate in respect of the whole of the Works, the Contractor shall submit to the Employer's representative a "Statement at Completion" with supporting documents showing in detail and the final bill, in the form approved by the Employer's representative. The final value of all Work done in accordance with the Contract up to the date stated in such Taking Over Certificate / Virtual Completion Certificate shall be considered.

Any further sums which the Contractor considers to be due along with the relevant documents and supporting regarding the same and an estimate of amounts, which the Contractor considers, will become due under the Contract.

The Employer's representative shall, within 60 (sixty) days of submission of the final bill shall issue a certificate of payment against the final bill to the Employer who shall thereupon, within 45 (forty-five) days from the date of receipt of the certificate, release the balance payment to the Contractor after affecting all recoveries, including advances and payments against interim certificates, if any. Payment against the submission of Final Bill shall be made as mentioned in the **Appendix to SCC**.

Final Bill (tax invoice) shall be considered if the cumulative Bill value (including amount towards Retention Deposit Account) is 95% (ninety-five percent) or higher, of the Total Contract Value.

5.8 No Dues Certification

The Contractor shall submit a No Dues certificate to Employer stating that all payments have been made to all nominated/ domestic sub-Contractors and suppliers as applicable 30 days before the release of payment against the final bill.

5.9 GST / Taxation

GST as applicable shall be paid as per the prevailing government rules and regulations. T.D.S shall be deducted from each R.A. bill. The Contractor shall furnish all the documentary details pertaining to the tax rules. Kindly refer to GCC of Contract clause no 5.5 (Adherence to Statutory Tax Payments) for tax adherence to this Contract.

The Contractor shall comply with e-invoicing requirements as per the applicability under relevant GST law(s) and / or mandate(s). All invoices must be generated through the Invoice Registration Portal (IRP) with a valid Invoice Reference Number (IRN) and QR code. The Employer reserves the absolute right to reject, cancel, or withhold payments for any invoice that is non-compliant, lacks a valid IRN, or contains incorrect details affecting GST compliance. The Contractor shall indemnify the Employer against any loss, penalty, or denial of Input Tax Credit (ITC) arising due to non-compliance. The Employer shall not be held liable for payment delays resulting from such deficiencies, and the Contractor shall remain solely responsible for ensuring continued compliance with amendments to e-invoicing regulations.

5.10 Retention Deposit Account

To ensure that the Contractor meets its performance and other obligations including various parameters as specified in the Contract, post completion of Contract, the Employer will appropriate fixed percentage of each invoice amount (excluding GST) towards 'Retention Deposit Account' as specified in the **Appendix to SCC**.

The amount towards '**Retention Deposit Account'** shall be released after the successful completion of the stated Scope of Works applicable under the Contract and as per stages mentioned in the **Appendix to SCC**. The Employer will have absolute rights to pass the debit entry against the said retained amount in the event of any work being carried out by the Employer, which would have otherwise been carried out by the Contractor. Under the circumstances, the Contractor shall raise no objection of any nature whatsoever.

5.11 Defect Liability Period

The defect liability period will be as mentioned in the **Appendix to SCC**, from the date of issue of Taking Over Certificate of the Works by the Employer. The Contractor shall abide all conditions till end of Defect Liability Period as is applicable under this Contract.

The Contractor shall abide by all conditions mentioned under this Contract and shall guarantee to remedy all defects during this time period at no extra cost to the Employer whatsoever. Failure to address the defects and issues from the Contractor's side, the Employer shall rectify the defects at 110% (one hundred and ten percent) of the actual cost recoverable from the Contractor from retention money or security or any other dues.

5.12 Liquidated Damages

Time is the essence of the Contract. In the event of any delay in completion of the Works beyond stipulated Completion Date (s) due to any reasons, other than reasons stated in GCC Clause 8.3 (Delays and Extensions) or reasons specifically attributable to Employer, Employer reserves the right to;

- Recovery from the Contractor as Liquidated Damages at a certain percentage of Total Contract Value as mentioned in **Appendix to SCC** for delay of each full week or part thereof.
- De-scope the works, without notice to Contractor at the risk and cost of the Contractor, either all the works or the balance works yet to be completed.
- Cancel the Work Order or the portion thereof in default, and if so desired, to carry out the defaulted works at the risk and cost of Contractor.

The liquidated damages are not a penalty but represent a reasonable pre-estimate of damages which Employer will suffer as a result of delay in achieving the Overall Completion of the Works.

5.13 Contra Charges

In case of works done or defects remedied by the Employer on behalf of the Contractor due to the inability or the unwillingness of the Contractor to carry out the same as per the terms of the Contract, without prejudice to the other rights and remedies of the Employer, the amount to be debited to the Contractor with the value of the debit being 110% of the actual cost of works or 110% of the cost as per the Work Order Line item(s) (as applicable) whichever is higher.

Brief list of different categories, but not limited to such works/rectification are as follows:

1. Employing extra resources (labour/material/equipment) by the Employer to get works done which was in the Contractor's scope
2. Completion of works through third parties where the same was in the Contractor's scope and was left incomplete by the Contractor
3. Remedy/Rectification of poor-quality work which was in the Contractor's scope
4. If the work done by Contractor is not 'really' repairable fully but still has to be accepted due to practical reasons. The estimated 'losses' to the Employer shall be assessed by the Employer taking into account the long-term ramification of the work quality

5. Any amounts spent in relation to issues related to Contractor's non-compliance with statutory provisions/laws
6. Non-compliance with Employer's policies, which are required to be complied with by the Contractor as per the Contractual obligation
7. When facilities provided by the Employer get misused or unduly extended beyond the period they were agreed for.
8. When any action or lack of it on the part of Contractor or their personnel results in theft, pilferage or fraudulent use of Employer's material

Contractors shall be provided copy with debit note for each debit at the time of payment of the bill in which the debit is made to the Contractor.

5.14 Mode of Measurement

All payments shall be made as per actual work done at site and measured jointly with the Employer's representative. All quantity measurement shall be based on IS 1200 mode of measurement, unless specified otherwise in the conditions of the Contract / Bill of Quantities (BOQ).

5.15 Validity of Rates

Being a firm price Contract as furnished by the Contractor in the Bill of Quantities (BOQ), no escalation to the rates shall be applicable due to any variation(s) till the tenure of this Contract, except for variation in prices of Basic Rate Guaranteed Materials if stated specifically hereof.

6. Documentation, Statutory Compliances, Indemnities & Labour Laws

The Contractor shall comply with all the compliances and laws as applicable under this Contract in adherence with the terms mentioned in the GCC Cl. 15. (Insurance) and submission of those compliances pertaining to this Contract and at site, from time to time for clearance and completion of stated scope of works.

7. Specific Terms / Deviation (if any)

Refer to attached **Appendix to SCC** for any other agreed terms with respect to technical / commercial / quality related points including any specific or unique terms applicable to this Contract considering the nature & criticality of the works of the project, as the case may be.